

26SMCV02484 26SMCV02484

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Case Number: 26SMCV02484 Hearing Date: September 3, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 3, 2026

CASE NUMBER

26SMCV02484

MOTION

Motion to Strike Portions of Complaint

MOVING PARTY

Defendant Jacie Chan

OPPOSING PARTY

none

MOTION

On May 4, 2026, Plaintiff Jose Rodrigo Aquino Lopez ("Plaintiff") brought suit against Defendant Jacie Chan ("Defendant") alleging three causes of action for (1) negligence; (2) negligence per se; and (3) statutory liability, arising out of an automobile collision.

Defendant now moves to strike the request for punitive damages from the Complaint. The motion is unopposed.

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

"Malice" means conduct which is intended by the defendant to

cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) "When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v. Snepp*, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643 [plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim"].)

In *Taylor v. Superior Court*, the California Supreme Court held: “We consider whether punitive damages are recoverable in a personal injury action brought against an intoxicated driver.

As will appear, we have concluded that the act of operating a motor vehicle while intoxicated may constitute an act of “malice” under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 892 [cleaned up].) The California high court further held that “[o]ne who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, “such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton.” (*Id.* at p. 899.) But the California high court also stated, “Although the circumstances in a particular case may disclose similar wilful or wanton behavior in other forms, ordinarily, routine negligent or even reckless disobedience of traffic laws would not justify an award of punitive damages.” (*Id.* at pp. 899-900 [emphasis added].)

In addition, while leaving the scene of an accident without rendering aid violates the Vehicle Code, it is independently actionable only if the defendant's leaving the scene of the incident was “a proximate cause of further injury or death” beyond the harm resulting from the underlying incident. (*Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669.) In particular, the Supreme Court held:

One who negligently injures another and renders him helpless is bound to use reasonable care to prevent any further harm which the actor realizes or should realize threatens the injured person. This duty existed at common law although the accident was caused in part by the contributory negligence of the person who was injured. Sections 4801 and 4822 of the Vehicle Code require an automobile driver who injures another to stop and render aid. This duty is imposed upon the driver whether or not he is responsible for the accident, and a violation gives rise to civil liability if it is a proximate cause of further injury or death. Failure to stop and render aid constitutes negligence as a matter of law, in the absence of a legally sufficient excuse or justification.

(*Id.*

at pp. 678–679, emphasis added [cleaned up]; *Karl v. C. A. Reed Lumber Co.* (1969) 275 Cal.App.2d 358, 361 [“failure to stop and render aid

after an injury-causing accident may constitute an independent wrong irrespective of any legal responsibility for the original injury”].)

Here,

Plaintiff alleges:

13. On

or about April 14, 2025, Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them were the operators of DEFENDANT’S VEHICLE and Plaintiff JOSE RODRIGO AQUINO LOPEZ was the driver of PLAINTIFF’S VEHICLE. Plaintiff was duly and rightfully traveling at or near 405 Fwy N/B when Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them negligently drove and operated DEFENDANT’S VEHICLE causing a collision with PLAINTIFF’S VEHICLE (hereinafter “Subject Collision”), thereby causing general and special damages to Plaintiff. At the time of the Subject Collision, Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them negligently and recklessly operated DEFENDANT’S VEHICLE in a manner which endangered the safety of persons and property traveling on and near 405 Fwy N/B, including Plaintiff, Plaintiff’s property, and other motorists.

19. At

the time, the aforementioned DEFENDANT’S VEHICLE was operated, driven, controlled, maintained, and/or managed by Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them in a negligent, careless, and reckless manner so as to proximately cause the Subject Collision. Specifically, Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them failed to observe traffic and the road, failed to yield to traffic, and operated DEFENDANT’S VEHICLE at a high rate of speed while using a cell phone causing the crash with PLAINTIFF’S VEHICLE and the resulting harms and losses to Plaintiff and Plaintiff’s property.

22. In

acting and in failing to act as aforementioned, the Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them acted in a negligent, reckless, careless, and improper manner, and with gross negligence, and conscious disregard, and that Defendants JACIE CHAN, and DOES 1 THROUGH 50, Inclusive, and each of them were otherwise careless and negligent in the instance.

(Complaint ¶¶ 13, 19, 22 [emphases added].)

Here,

Plaintiff has failed to allege more than reckless disobedience of traffic laws, which, as Taylor instructs is insufficient to allege a claim for punitive damages. Plaintiff has not alleged wilful or wanton, conscious disregard for safety with requisite specificity. Therefore, the Court grants Defendant's motion to strike punitive damages from the Complaint.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has failed to meet this burden as Plaintiff did not oppose the motion, and therefore does not address whether leave should be granted if the motion to strike is granted.

CONCLUSION AND ORDER

Because Plaintiff has not alleged wilful or wanton, conscious disregard for safety with requisite specificity, the Court grants Defendant's unopposed motion to strike punitive damages from the Complaint without leave to amend. Further, the Court orders Defendant to file and serve an Answer to the Complaint on or before September 17, 2026.

Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 3, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court